

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #3	CCRB Case #: 201507199	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 08/18/2015 7:25 PM, Thursday, 08/20/2015	Location of Incident: 120 Schermerhorn Street	Precinct: 84	18 Mo. SOL 2/18/2017	EO SOL 2/18/2017	
Date/Time CV Reported Tue, 08/18/2015 8:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/26/2015 1:36 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edgar Gonzalez	00557	917698	BKLN CT
2. POM Yves Dorisme	12335	941678	BKLN CT
3. Officer(s)			
4. DT3 Ernest Leroy	05056	894738	BKLN CT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Wanda Gowins	02967	891577	BKLN CT
2. SGT William Daily	05644	901414	BKLN CT

Officer(s)	Allegation	Investigator Recommendation
A.POM Edgar Gonzalez	Discourtesy: On August 18, 2015, PO Edgar Gonzalez spoke discourteously to § 87(2)(b)	
B.POM Edgar Gonzalez	Discourtesy: On August 18, 2015, PO Edgar Gonzalez acted discourteously toward § 87(2)(b)	
C.POM Edgar Gonzalez	Force: On August 18, 2015, PO Edgar Gonzalez used physical force against § 87(2)(b)	
D.POM Yves Dorisme	Force: On August 18, 2015, PO Yves Dorisme used physical force against § 87(2)(b)	
E.DT3 Ernest Leroy	Force: On August 18, 2015, Det. Ernest Leroy used physical force against § 87(2)(b)	
F. Officer(s)	Force: On August 18, 2015, officers used physical force against § 87(2)(b)	
G. Officer(s)	Abuse: On August 18, 2015, officers did not obtain medical treatment for § 87(2)(b)	
H.DT3 Ernest Leroy	Discourtesy: On August 18, 2015, Det. Ernest Leroy spoke discourteously to § 87(2)(b)	
I. Officer(s)	Discourtesy: On August 18, 2015, an officer spoke discourteously to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J. Officer(s)	Discourtesy: On August 20, 2015, an officer spoke discourteously to § 87(2)(b)	
K. Officer(s)	Abuse: On August 20, 2015, an officer threatened § 87(2)(b) with the use of force.	

Case Summary

On August 18, 2015, Lt. Dominick Delorenzo filed this complaint on behalf of § 87(2)(b) with IAB, which generated log #2015-24258. It was referred to the CCRB on August 26, 2015.

On August 18, 2015, at approximately 7:25 p.m., after being arraigned in Brooklyn Central Booking, PO Edgar Gonzalez of Brooklyn Central Booking escorted § 87(2)(b) back to the holding cells. When § 87(2)(b) refused to remove his belt and shoestrings in his attempt to barter a trip to the bathroom before entering the holding cell, PO Gonzalez led § 87(2)(b) to the bench in the back area. PO Yves Dorisme of Brooklyn Central Booking assisted in escorting § 87(2)(b). In the back area were two officers from an unknown command (PO1 and PO2). Once they were at the back area, PO Gonzalez asked § 87(2)(b) “You wanna be a wise ass?” (**Allegation A**). § 87(2)(b) told PO Gonzalez, “No, I just wanna go to the damn bathroom!” § 87(2)(b) alleged PO Gonzalez tried to grab him by the mouth (**Allegation B**) and PO Gonzalez’ finger ended up inside his mouth. Panicked, § 87(2)(b) bit PO Gonzalez’s finger. PO Gonzalez immediately punched § 87(2)(b) in the left eye (**Allegation C**). When PO Gonzalez went to punch § 87(2)(b) again, § 87(2)(b) put up his arms to shield himself. PO Gonzalez, PO Dorisme, Det. Leroy, and PO1 grabbed § 87(2)(b) around the waist and upper arms to bring him onto the ground (**Allegation C continued; Allegations D, E, and F**). While on the ground, an unknown officer pinned § 87(2)(b) down to the ground with his knee or foot to § 87(2)(b)’s upper back (**Allegation F continued**) and he was handcuffed immediately.

Sgt. William Daily responded to the back area in regards to the incident instructed officers to escort § 87(2)(b) from the back area. As § 87(2)(b) was escorted from the back area by Sgt. Daily and Det. Leroy, § 87(2)(b) requested medical attention from every officer he passed by, including PO Gonzalez, PO Dorisme, Det. Leroy, PO1, and Sgt. Daily (**Allegation G**). An officer replied, “Fuck outta here,” to § 87(2)(b)’s request (**Allegation H**). As Det. Leroy placed § 87(2)(b) in a cell, Det. Leroy replied, “No, you wanna be a dick? That’s where you’re gonna be” (**Allegation I**).

On August 20, 2015, when § 87(2)(b) was about to be brought out to be arraigned for his second arrest, PO2, an unidentified officer, approached § 87(2)(b), opened the cell door, and told § 87(2)(b) to step out so they could fight. PO2 said to § 87(2)(b) “You wanna fight one of my friends? I’m a fuck you up” (**Allegations J and K**). Afterwards, § 87(2)(b) met with his attorney and had her push the issue to get him medical attention.

IAB provided the investigation with surveillance footage from Brooklyn Central Booking. However, the footage has no audio and would not have captured any verbal allegations; the footage records images at a two to three second interval and camera angles were too far to capture any physical allegations.

This case is being submitted past the 90-day deadline due to difficulty identifying the subject officers.

Video Evidence



201507199 (1).mp4

Snag-it version of
Camera 5 [BR 07]



201507199 (2).mp4

Snag-it version of
Camera 7 [BR 08]



201507199 (3).mp4

Snag-it version of
Camera 12 [BR 09]



201507199 (4).mp4

Snag-it version of
Camera 15 [BR 10]

Mediation, Civil and Criminal Conviction Histories

- This case was not suitable due to § 87(2)(b)’s arrest for assaulting an officer, whom he injured.

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of December 2, 2015 with regard to the incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 18].
- Edgar Gonzalez has been a member of the service for 19 years and there are no substantiated CCRB allegations against him.
- PO Yves Dorisme has been a member of the service for 9 years and there is one substantiated CCRB allegations against him:
 - In case 200808337, a question allegation was substantiated; instructions were recommended and the NYPD took no disciplinary action.
- Det. Ernest Leroy has been a member of the service for 27 years and there are no substantiated CCRB allegations against him.

Potential Issues

- As § 87(2)(b) was interviewed via VTC to Riker's Island § 87(2)(b) he was instructed to sign and return the verification form and HIPAA forms mailed to him. However, § 87(2)(b) did not return any of the forms to the investigation prior to his release from custody. The phone number § 87(2)(b) provided to the investigation was disconnected. The undersigned mailed three please call letters to § 87(2)(b) as of January 30, 2016, § 87(2)(b) has not contacted the undersigned and no letters have been returned by the USPS. Consequently, there is no verified statement from § 87(2)(b) regarding the incident on August 18, 2015 and a photo viewing could not be conducted to identify the subject officer on August 20, 2015.
- The investigation revealed that § 87(2)(b)'s attorney at the time was § 87(2)(b) of Brooklyn Defenders Service. § 87(2)(b) spoke with witnesses in the holding cell with § 87(2)(b) on August 20, 2015.
 - The investigation obtained a telephone statement from § 87(2)(b) and a verified statement from § 87(2)(b) regarding the incident on August 20, 2015.
 - The investigation was unable to reach § 87(2)(b) or § 87(2)(b). Consequently, the investigation does not have statements from them.

Finding and Recommendations

Explanation of Subject Officer Identification

- **PO Edgar Gonzalez**
 - § 87(2)(b) alleged two officers escorted him to the back area. § 87(2)(b) described the first officer, whom he later ended up biting, as a black male, is 5'9"-10" tall, weighs 180-210 pounds, low cut hair, average build, and in his late 30s-early 40s.
 - The investigation identified the officer whom § 87(2)(b) bit as PO Gonzalez, a Hispanic male, is 5'10" tall, weighs 215 pounds, with black hair, black eyes, and was § 87(2)(b) old at the time of the incident. § 87(2)(g)

- § 87(2)(g) .
- **PO Yves Dorisme**
 - § 87(2)(b) described the second officer who assisted in escorting him to the back area as a Caucasian male, is 5'8" tall, weighs 220-230 pounds, has blond hair, heavyset build, and is 32-33 years old.
 - The investigation identified the officer who assisted PO Gonzalez as PO Dorisme, a black male, is 5'7" tall, weighs 135 pounds, with black hair and brown eyes, and was § 87(2)(b) old at the time of the incident. Concurrent with surveillance footage, PO Dorisme confirmed his role in the incident. § 87(2)(g)
 - **Det. Ernest Leroy:**
 - § 87(2)(b) described the officer who assisted PO Gonzalez and PO Dorisme as a black male, is 6'1"-2" tall, weighs 250-260 pounds, low cut hair, wears glasses, heavyset build, and in in his late 40s-50s. § 87(2)(b) also stated this officer also escorted him from the new court pen area to the DOC area of BCB and spoke discourteously to him. Surveillance footage shows § 87(2)(b) being escorted from the new court pen area by Sgt. Daily, a Caucasian male and assisted by Det. Leroy. The investigation determined Det. Leroy, a black male who is 5'9" tall, weighs 200 pounds, with black hair and brown eyes, and was § 87(2)(b) old at the time of the incident, to be the subject officer. § 87(2)(g)
 - **Allegation F:**
 - § 87(2)(b) described the officer who assisted PO Gonzalez and PO Dorisme as a black male, is 5'7" tall, weighs 150-160 pounds, bald head, and in his 30s.
 - PO Gonzalez, PO Dorisme, Det. Leroy, and PO Gowins did not recall the names or the commands of the officers present from outside commands. And as the information is not noted in the detention pen log or command log for BCB, the officers could not be identified. § 87(2)(g)
 - **Allegations J and K:**
 - § 87(2)(b) described the officer as black male with a bald head, weighs 220-230 pounds, wears glasses, and has a heavyset build.
 - § 87(2)(b) described the officer as a black male with short/curly hair, dark-caramel skin tone, is 5'7" tall, weighs 220-230 pounds, is in his late 30s, has a beard, does not wear glasses, and has a chubby/heavyset build.
 - § 87(2)(b) described the officer as a black male with a bald head, is 6'2" tall, and has a muscular build.
 - For Tour 2 of August 20, 2015, there were six male black officers on duty. Of those six, PO Dwaine Moore, PO Byron Riley, and PO Treavor Graham were determined to be potential subject officers and interviewed by the undersigned. PO Moore, PO Riley, and PO Graham denied involvement with § 87(2)(b). Sgt. Christopher Ancona of Brooklyn Court Section explained that all officers assist in all positions of administration in Brooklyn Central Booking, and do not necessarily follow their assignments as noted on the roll call. Furthermore, Police Administrative Aides (civilians) can also be assigned to posts in the cell areas. The undersigned prepared a photo array viewing for § 87(2)(b) and mailed three letters to him. As of January 15, 2016, § 87(2)(b) has not contacted the undersigned and no letters have been returned by the USPS. § 87(2)(g)

Recommendations

- **Allegation A: Discourtesy – On August 18, 2015, PO Edgar Gonzalez spoke discourteously to § 87(2)(b)**

- **Allegation C: Force – On August 18, 2015, PO Edgar Gonzalez used physical force against § 87(2)(b)**
- **Allegation D: Force – On August 18, 2015, PO Yves Dorisme used physical force against § 87(2)(b)**
- **Allegation E: Force – On August 18, 2015, PO Ernest Leroy used physical force against § 87(2)(b)**
- **Allegation F: Force – On August 18, 2015, officers used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that after he bit PO Gonzalez, PO Gonzalez punched him in the left eye and then his left arm when he put his arms up to deflect the punches. Officers then grabbed him around his waist and upper arms to bring him to the ground on his stomach [BR 01]. Then, an officer pinned him to the ground with his knee or foot to § 87(2)(b)'s upper back. § 87(2)(b) was immediately handcuffed and escorted to the corrections area. § 87(2)(b) alleged he sustained swelling and bruising to his left arm and forearm, and experienced spasms to his upper back.

PO Gonzalez, PO Dorisme, and PO Gowins explained that prisoners who refuse to remove their belt and shoelaces to go into the holding pen are taken to the bench area. There, the officer handcuffs the individual to the bench and removes their shoelaces and belt for them. The prisoner then waits for an escort to bring them downstairs to the corrections area. PO Gonzalez explained that when § 87(2)(b) refused to take a seat, § 87(2)(b) stood against the wall with his hands in fists up in front of him, throwing punches at the air [BR 02]. PO Gonzalez stood to § 87(2)(b)'s left and PO Gonzalez stood to § 87(2)(b)'s right. § 87(2)(b) said, "I'm not gonna take off my belt and laces! I'm gonna make you fight for it. Fuck this!" PO Gonzalez continued to ask § 87(2)(b) to take a seat and again § 87(2)(b) yelled back at him. Other officers heard the commotion and joined them. When PO Dorisme put his hand on § 87(2)(b) to try and direct him to the bench, § 87(2)(b) took his fighting stance again. PO Gonzalez grabbed § 87(2)(b) by his upper arm to guide him to the bench but § 87(2)(b) smacked his hand away as well and swung at PO Gonzalez five to ten times. One of the punches impacted PO Gonzalez in the face and his glasses fell off; PO Gonzalez sustained an abrasion to his right cheek. A second punch impacted PO Gonzalez near his left eye. PO Gonzalez grabbed § 87(2)(b) by his shoulders to restrain his arms and to bring him to the ground. PO Gonzalez did not recall if other officers assisted. Once on the ground, PO Gonzalez, PO Dorisme, and four to five other officers in uniform handcuffed § 87(2)(b). PO Gonzalez denied having pinned § 87(2)(b) by his back to the ground. PO Gonzalez explained that medically, he is incapable of making a fist with his dominant hand, hence why he is on modified duty and assigned to Brooklyn Court. PO Gonzalez denied having punched § 87(2)(b) and denied having observed any officer punch § 87(2)(b). PO Gonzalez's testimony was consistent with the statement he provided in his Line of Duty (LOD) injury report [NYPD 03]. PO Gonzalez noted he was punched in the right and left temple, strained his right hand which caused him pain and swelling, and was bitten on the right index finger and sustained a laceration.

When PO Dorisme observed PO Gonzalez enter the pen area escorting § 87(2)(b) and § 87(2)(b) refused instructions to remove his belt and shoelaces, PO Dorisme instructed PO Gonzalez to lead § 87(2)(b) to the back area and have a seat on the bench [BR 04]. PO Dorisme followed PO Gonzalez and § 87(2)(b) to the back "just in case something happened." When § 87(2)(b) was directed to have a seat, he refused and stood at the wall five to ten feet from the benches. When PO Dorisme reached out to grab § 87(2)(b)'s arm to handcuff him, § 87(2)(b) took a step towards PO Gonzalez. PO Gonzalez stepped in to prevent § 87(2)(b) from fleeing the area. Then, § 87(2)(b) put his hands up in a fighting position and punched PO Gonzalez a few times. One punch knocked PO Gonzalez's glasses off his face. PO Gonzalez tried to grab § 87(2)(b)'s left hand to stop him from throwing more punches. Three to four officers from other commands came to assist and bring § 87(2)(b) to the ground. PO Dorisme held § 87(2)(b)'s left arm and PO Gonzalez

held § 87(2)(b) by his right arm while the other officers grabbed § 87(2)(b) by his legs to bring him chest-down to the ground. PO Dorisme did not use his knee or foot to pin § 87(2)(b) to the ground and did not observe another officer do so. § 87(2)(b) continued to push and kick at the officers but was immediately handcuffed. In his witness LOD report which was consistent with his CCRB testimony, PO Dorisme stated that after he and PO Gonzalez escorted § 87(2)(b) to the back to be handcuffed to the bench, § 87(2)(b) said he would not let anyone handcuff him the easy way to the bench [NYPD 03]. PO Dorisme reached for § 87(2)(b)'s hand to handcuff him and § 87(2)(b) pulled his hand away. § 87(2)(b) started to "square off" with PO Gonzalez and threw punches. PO Dorisme was able to hold one of § 87(2)(b)'s hands. § 87(2)(b) bit PO Gonzalez on his right index finger, drawing blood. § 87(2)(b) was taken down to the ground with the help of other officers and handcuffed.

Det. Leroy heard an inmate cursing in the back area of the cells and what sounded like a struggle so he went to investigate [BR 22]. Det. Leroy observed PO Gonzalez on top of § 87(2)(b) (who was faced down) trying to restrain his arms. PO Gonzalez's finger was already bleeding. Det. Leroy recalled two to three officers from separate commands were present; Det. Leroy did not remember any other officers assigned Brooklyn Central Booking there. PO Gonzalez asked Det. Leroy to assist him so Det. Leroy grabbed § 87(2)(b)'s arms as § 87(2)(b) tried to jerk his arms free. Det. Leroy bent down next to § 87(2)(b) but did not remember where in relation to § 87(2)(b) he had bent down. Det. Leroy did not remember if he had grabbed § 87(2)(b) by the head. Det. Leroy stated he believed he may have been positioned by § 87(2)(b)'s head but did not remember for sure. Det. Leroy denied having pushed § 87(2)(b)'s head down to the ground. PO Gonzalez and Det. Leroy struggled for five to seven minutes to handcuff § 87(2)(b).

PO Gowins heard yelling and cursing on the male side of the room and shortly after, she observed PO Gonzalez and PO Dorisme escort § 87(2)(b) past her desk to the bench in the back area (roughly three to four car lengths from her desk) [BR 05]. § 87(2)(b) stood near the benches and spoke with PO Gonzalez and PO Dorisme. When PO Gonzalez asked § 87(2)(b) to sit on the bench, § 87(2)(b) replied, "You're gonna have to take me down or sit me down." Then, PO Gowins observed § 87(2)(b) swing numerous times at PO Gonzalez and PO Dorisme. PO Gowins did not remember where on PO Gonzalez and PO Dorisme the punches landed. PO Gowins did not observe an officer punch § 87(2)(b) in the eye. PO Gonzalez and PO Dorisme restrained § 87(2)(b) from punching them by grabbing his upper body and pulling him down to the ground. PO Gowins did not recall if any officer grabbed § 87(2)(b) by his legs to assist in bringing him down. Once on the ground, officers used their hands and applied their body weight to keep § 87(2)(b) on the ground as he attempted to get the officers off of him. PO Gowins did not observe any officer with his knee or foot on § 87(2)(b)'s back; § 87(2)(b) was handcuffed immediately. In her witness LOD report which was consistent with her CCRB testimony, PO Gowins noted she observed PO Gonzalez and PO Dorisme bring a male prisoner to the back and heard him say, "I'm not letting anyone cuff me the easy way" [NYPD 03]. He then started throwing punches at PO Gonzalez and PO Dorisme, and had his mouth open attempting to bite PO Gonzalez and PO Dorisme.

Sgt. Daily arrived at the rear of the cells when § 87(2)(b) was already placed in handcuffs [BR 21]. Sgt. Daily did not observe any of the force used to restrain § 87(2)(b) and did not remember if § 87(2)(b) had sustained any injuries as a result of the incident. In PO Gonzalez's LOD report, Sgt. Daily noted that PO Gonzalez received contusions to his right and left temples and strained his right hand as well as a bite to his right index finger while restraining an uncooperative and combative prisoner after being arraigned [NYPD 03].

PO Andrew Schmitt, § 87(2)(b)'s assigned arresting officer, was not present for the incident [BR 03]. PO Dorisme had recounted the incident for PO Schmitt, which PO Schmitt then summarized in § 87(2)(b)'s arrest report narrative, charging him with assaulting a police officer, obstructing

governmental administration, § 87(2)(b)

At approximately 11:00 p.m., PO Schmitt observed § 87(2)(b) briefly when he went to assist in the fingerprinting process. PO Schmitt stood within two feet of § 87(2)(b) and did not observe any injuries to § 87(2)(b)

Cpt. William Tobin, Commanding Officer of Brooklyn Court Section, wrote a letter noting there was no Medical Treatment of Prisoner Report generated for § 87(2)(b) in regards to the incident on August 18, 2015.

According to his arraignment paperwork, § 87(2)(b) was transported to § 87(2)(b) on § 87(2)(b) for arm pain [NYPD 02]. Medical records for § 87(2)(b) could not be obtained as § 87(2)(b) failed to return signed HIPAAs for the investigation.

Surveillance footages show the incident from different angles, but none are close to § 87(2)(b) and officers. It is unclear what occurred between § 87(2)(b) and officers in the three frames from 7:17:19 p.m. and 7:17:24 p.m. in Camera 12 and Camera 7 [BR 09; BR 08], but something attracts the attention of other officers as they began to gather around § 87(2)(b) PO Gonzalez, and PO Dorisme. In Camera 12 at 17:17:22 p.m., § 87(2)(b) appeared to be struggling with an officer. At 7:18:34, PO Gonzalez is observed bending over, presumably in pain, as he holds his right hand. PO Gonzalez was not wearing his glasses, which he was observed wearing prior to the struggle.

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 201507199 (2).mp4
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NYPD Patrol Guide §203-11 discusses the justification for the use of physical force by officers [BR 19]. It explains that an officer is able to use physical force to overcome resistance in the course of effecting an arrest, preventing an escape, and in self-defense from what “he or she reasonably believes to be the use or imminent use of physical force.”

§ 87(2)(g)

§ 87(2)(g)

• **Allegation G: Abuse of Authority – On August 18, 2015, officers did not obtain medical treatment for § 87(2)(b)**

On August 18, 2015, § 87(2)(b) alleged that after he was handcuffed and being escorted from the back area where the incident with PO Gonzalez occurred, he requested medical attention from every officer he passed by, including PO Gonzalez, PO Dorisme, Det. Leroy, PO1, and Sgt. Daily [BR 01]. § 87(2)(b) explained that from August 18, 2015 to August 20, 2015, he was held in a cell in the downstairs area of BCB. § 87(2)(b) alleged he was denied medical treatment until he met with his attorney § 87(2)(b) prior to being arraigned for his second arrest on August 20, 2015. § 87(2)(b) pushed the issue to get medical attention for him, as his arm was swollen from

having been punched by PO Gonzalez (he also alleged swelling to his left eye and back spasms but did not mention this as a reason for requesting medical attention at this time). § 87(2)(b) was transported by local precinct officers in a marked van to § 87(2)(b). § 87(2)(b) informed the investigation that on § 87(2)(b) he was prescribed 600 mg of Ibuprofen.

§ 87(2)(b) explained that he became acquainted with § 87(2)(b) over the two days they spent in BCB together. On August 20, 2015, § 87(2)(b) heard § 87(2)(b) ask twice to be taken to the hospital before he was eventually given medical treatment. § 87(2)(b) did not know if § 87(2)(b) made any previous requests to go to the hospital.

As the investigation was unable to obtain a verified statement or signed medical release forms from § 87(2)(b) medical records from § 87(2)(b) could not be requested.

According to his arraignment paperwork, § 87(2)(b) was transported to § 87(2)(b) on § 87(2)(b) by PO Bryan Lee (shield #24709, 73rd Precinct) and PO Mark Beneducci (shield #31734, 100th Precinct) in van #1966 for arm pain and discharged on § 87(2)(b) [NYPD 02]. Subsequently, § 87(2)(b) was arraigned on August 20, 2015 at 11:59 a.m.

NYPD Patrol Guide §210-04 only requires officers to request an ambulance and remove a prisoner to the hospital directly from the place of arrest if it is deemed “necessary” [BR 24]. It further establishes that if a prisoner dies, is seriously injured in connection with a police activity, or sustains an injury resulting from a police firearm discharge, an officer must immediately request a supervisor and either provide or secure appropriate medical attention for the injured prisoner. In the OATH case *PD v. Collins* (2003), the respondent struck a civilian with his vehicle and refrained from obtaining medical treatment until he returned to the stationhouse, despite verbal declarations of pain and the apparent inability to walk [BR 23]. The administrative law judge rejected the respondent’s claim to not have seen objective signs of a serious injury, i.e. blood or deformities. As there were objective indications of injury other than a mere verbal declaration, the officer should have recognized its seriousness and immediately provided medical attention.

§ 87(2)(g)

[REDACTED]

p.

• **Allegation H: On August 18, 2015, Det. Leroy spoke discourteously to § 87(2)(b)**

§ 87(2)(b) alleged that when he asked the officer escorting him for medical attention, the officer replied, “No, you wanna be a dick? That’s where you’re gonna be,” before locking him in a cell in the downstairs area of the building.

Surveillance footage showed at 7:29:31 p.m., Det. Leroy led Sgt. Daily who was escorting § 87(2)(b) out of the area [BR 09].



201507199 (3).mp4

Sgt. Daily confirmed that Det. Leroy assisted him in escorting § 87(2)(b) from the new court pen [BR 21]. However, Sgt. Daily did not remember if he escorted § 87(2)(b) all the way downstairs to the Department of Correction intake cells or if Det. Leroy or another officer had taken over and escorted § 87(2)(b) downstairs without him. Sgt. Daily did not hear Det. Leroy speak

discourteously to § 87(2)(b) Det. Leroy confirmed he assisted Sgt. Daily in escorting § 87(2)(b) downstairs to the intake cells [BR 22]. Det. Leroy denied making the alleged statement to § 87(2)(b)

§ 87(2)(g)

- **Allegation I: Discourtesy – On August 18, 2015, an officer spoke discourteously to § 87(2)(b)**
- **Allegation J: Discourtesy – On August 20, 2015, an officer spoke discourteously to § 87(2)(b)**
- **Allegation K: Abuse of Authority – On August 20, 2015, an officer threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) alleged that after he was handcuffed and escorted through Brooklyn Central Booking, an officer told him “fuck outta here” in response to his request for medical attention [BR 01]. § 87(2)(b) did not recall what this officer looked like. § 87(2)(b) alleged that when he was about to be brought out to be arraigned for his second arrest, an officer approached the cell door, opened it, and told § 87(2)(b) to step out so they could fight. The officer said to § 87(2)(b) “You wanna fight one of my friends? I’m a fuck you up.”

PO Gonzalez, PO Dorisme, PO Gowins, Sgt. Daily, and Det. Leroy did not hear any officer tell § 87(2)(b) “fuck outta here” on August 18, 2015 [BR 02; BR 04; BR 05; BR 21; BR 22]. Furthermore, they all denied interacting with § 87(2)(b) or observing another officer interact with § 87(2)(b) on August 20, 2015.

§ 87(2)(g)

Squad: 3

Investigator: _____ Rebecca Ho 02/02/16
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date